

Court No. - 39

Case :- WRIT - C No. - 33180 of 2022

Petitioner :- Vijay Kumar Agrawal

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Anil Kumar Pandey

Counsel for Respondent :- C.S.C., Rishu Mishra

Hon'ble Mrs. Sunita Agarwal, J.

Hon'ble Vipin Chandra Dixit, J.

At the very outset, learned counsel for the petitioner states that he may be permitted to delete the respondent no.4 from the array of parties.

In view of the said statement, permission is granted to delete the respondent no.4 from the array of the parties and incorporation in this regard shall be made by the learned counsel for the petitioner within the course of the day.

The challenge is to the order dated 27.9.2022 passed by the Executive Engineer, Electricity Urban Distribution Division (EUDD)-II, Baxipur, Gorakhpur passed in exercise of powers in Clause 6.5 of the U.P. Electricity Supply Code, 2005.

It is submitted by the learned counsel for the petitioner that the petitioner is ready and willing to repay the entire dues determined by the Executive Engineer in the order impugned but the condition put in the order impugned with regard to deposit of entire principal amount of Rs.1,97,830.94 may be relaxed by this Court.

We may note that the petitioner herein is contesting the dispute relating to electricity bills since 2018 and after various rounds of litigation, finally the determination has been done by the order dated 27.9.2022. The chart appended to the order impugned shows that the provisional bill does not suffer from any error of law. We may further note that the Executive Engineer has already granted relaxation to the petitioner to deposit the total amount of Rs.2,15,135.00/- towards interest in six instalments. The petitioner has to show his bonafide by depositing the principal amount of Rs.1,97,830.94/- as indicated in the order impugned dated 27.9.2022 and the permission to deposit the interest in six instalments is subject to the first deposit towards principal made by the petitioner.

Taking note of the order impugned and in the facts and circumstances of the case, we do not find it a fit case for interference. However, in case of any dispute, the petitioner is at liberty to file an appeal under Section 127 of the Electricity Act, 2003.

The writ petition is accordingly, dismissed.

Order Date :- 23.11.2022

Kpy